

SAAS SUBSCRIPTION AGREEMENT AND TERMS OF SERVICE

These Terms of Service ('Agreement') govern access to and use of the CloudSync platform ('Service') provided by CloudSync Technologies, Inc. ('Provider'). By clicking 'Agree' or accessing the Service, Customer ('Customer') accepts these terms in their entirety as of the date of acceptance ('Effective Date').

1. Subscription and Fees

1.1 Subscription Plan. Customer subscribes to the Business Plan at \$499 per month for up to 50 users. Additional users are \$12/user/month.

1.2 Auto-Renewal. UNLESS CUSTOMER PROVIDES WRITTEN CANCELLATION NOTICE AT LEAST THIRTY (30) DAYS BEFORE THE END OF THE THEN-CURRENT SUBSCRIPTION PERIOD, THIS AGREEMENT WILL AUTOMATICALLY RENEW FOR SUCCESSIVE ONE-YEAR TERMS AT THE THEN-CURRENT LIST PRICE, WHICH MAY INCREASE BY UP TO 10% ANNUALLY WITHOUT FURTHER NOTICE.

1.3 Payment. All fees are due net-30 from invoice date. Overdue amounts accrue interest at 1.5% per month. Provider reserves the right to suspend access for accounts more than 15 days past due.

1.4 No Refunds. All fees are non-refundable except as expressly set forth herein.

2. Data and Privacy

2.1 Customer Data. Customer retains all rights to data uploaded to the Service ('Customer Data'). Provider may access Customer Data solely to provide the Service.

2.2 Data Processing. Provider shall process Customer Data in accordance with its Privacy Policy and applicable data protection laws. For EU/UK customers, the Data Processing Addendum ('DPA') incorporated by reference governs GDPR compliance.

2.3 Data Retention. Upon termination, Provider will retain Customer Data for sixty (60) days, after which it will be permanently deleted. Customer is responsible for exporting data prior to termination.

2.4 Subprocessors. Provider may engage subprocessors listed at provider.com/subprocessors and shall notify Customer thirty (30) days before adding new subprocessors.

3. Intellectual Property and Acceptable Use

3.1 License. Provider grants Customer a non-exclusive, non-transferable license to access and use the Service during the subscription term solely for Customer's internal business purposes.

3.2 Restrictions. Customer shall not: (a) sublicense or resell access; (b) reverse engineer the Service; (c) use the Service to store or transmit malicious code; (d) interfere with or disrupt the Service's integrity; or (e) use the Service to develop a competing product.

3.3 Feedback. Any feedback Customer provides may be used by Provider without restriction or compensation to Customer.

4. Warranties and Disclaimers

4.1 Limited Warranty. Provider warrants that the Service will perform materially in accordance with the Documentation under normal use. Customer's sole remedy for breach of this warranty is re-performance or a pro-rata refund for the affected period.

4.2 DISCLAIMER. EXCEPT AS SET FORTH IN SECTION 4.1, THE SERVICE IS PROVIDED 'AS IS' WITHOUT WARRANTIES OF ANY KIND, WHETHER EXPRESS, IMPLIED, STATUTORY, OR OTHERWISE. PROVIDER DISCLAIMS ALL IMPLIED WARRANTIES, INCLUDING MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, AND NON-INFRINGEMENT.

5. Limitation of Liability -- HIGH RISK

5.1 EXCLUSION OF CONSEQUENTIAL DAMAGES. IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR ANY INDIRECT, INCIDENTAL, SPECIAL, EXEMPLARY, CONSEQUENTIAL, OR PUNITIVE DAMAGES, INCLUDING LOSS OF PROFITS, DATA, BUSINESS, OR GOODWILL, EVEN IF ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

5.2 LIABILITY CAP. PROVIDER'S TOTAL CUMULATIVE LIABILITY ARISING OUT OF OR RELATED TO THIS AGREEMENT SHALL NOT EXCEED THE TOTAL FEES PAID BY CUSTOMER IN THE TWELVE (12) MONTHS IMMEDIATELY PRECEDING THE CLAIM. CUSTOMER ACKNOWLEDGES THIS LIMIT IS A FUNDAMENTAL ELEMENT OF THE BASIS OF THE BARGAIN BETWEEN THE PARTIES.

6. Termination

6.1 Termination for Convenience. Either party may terminate this Agreement for any reason upon sixty (60) days written notice; provided, Customer shall remain liable for all fees through the end of the current subscription period.

6.2 Termination for Cause. Either party may terminate immediately upon written notice if the other party materially breaches this Agreement and fails to cure within thirty (30) days of notice.

6.3 Effect of Termination. Upon termination, all licenses granted herein shall immediately terminate. Sections 1.4, 2.3, 3.3, 4.2, 5, 6.3, and 7 survive termination.

7. General

7.1 Governing Law. This Agreement is governed by the laws of the State of Delaware.

7.2 Entire Agreement. This Agreement (including the DPA and any Order Forms) constitutes the entire agreement and supersedes all prior understandings.

7.3 Changes to Terms. Provider may modify these Terms upon thirty (30) days written notice. Continued use of the Service after the effective date constitutes acceptance.

Customer: _____ Date: _____

CloudSync Technologies, Inc.: _____ Date: _____